

Interpretation,
construction
and citation.

4.—(1) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including this Act.

(2) This Act and the Superannuation Act, 1949, shall be construed as one with the Superannuation Acts, 1834 to 1946.

(3) This Act may be cited as the Superannuation Act, 1950 ; and this Act and the Superannuation Acts, 1834 to 1949, may be cited together as the Superannuation Acts, 1834 to 1950.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Superannuation Act, 1946	9 & 10 Geo. 6. c. 60.
Superannuation Act, 1949	12, 13 & 14 Geo. 6. c. 44.

CHAPTER 3

An Act to make further provision as to the salary and superannuation of the Comptroller and Auditor General.
[15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Salary of
Comptroller.

1.—(1) His Majesty may by letters patent grant to the Comptroller and Auditor General a salary at the rate of four thousand five hundred pounds per annum.

(2) The person who held the office of Comptroller and Auditor General on the first day of October nineteen hundred and fifty shall be entitled to a salary at the rate aforesaid from that date as if it had been duly granted to him under this section ; and for the purpose of any enactment relating to superannuation (including the following provisions of this Act) his salary for

the year ending on the thirtieth day of September nineteen hundred and fifty shall be deemed to have been payable at that rate.

(3) The salary payable to the Comptroller and Auditor General by virtue of this section shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof (in this Act referred to as the Consolidated Fund).

2.—(1) Subject to the provisions of this section, His Majesty Pension of may by letters patent grant to any person who has held the Comptroller. office of Comptroller and Auditor General for a period of not less than fifteen years, on his ceasing to hold that office, a pension at the following rate:—

- (a) if he has held that office for a period of not less than twenty years, two-thirds of the salary payable to him immediately before he ceased to hold it;
- (b) if he has held that office for a period of less than twenty years, one-half of that salary.

(2) No pension shall be granted to any person under this section unless at the time of his ceasing to hold the office of Comptroller and Auditor General he has attained the age of sixty years or is disabled by a permanent infirmity from performing the functions of that office.

(3) No pension shall be granted to any person under this section unless within three months after his appointment to the office of Comptroller and Auditor General (or, in the case of the person who holds that office at the commencement of this Act, within three months after the commencement of this Act) he gives notice in writing to the Treasury that he elects that this section shall apply to him.

(4) Any pension granted by virtue of this section shall be charged on and issued out of the Consolidated Fund.

3.—(1) In relation to a person who at any time after the com- Application of mence- ment of this Act holds or has held the office of Comptroller Superannua- and Auditor General, not being a person who has given notice tion Acts in under subsection (3) of section two of this Act, the Superannua- lieu of s. 2. tion Acts, 1834 to 1949, shall have effect subject to the following modifications:—

- (a) any pension, allowance or gratuity payable under those Acts may be granted by His Majesty by letters patent;
- (b) any such pension, allowance or gratuity shall be charged on and issued out of the Consolidated Fund.

(2) Except as provided by this section, the said Acts shall not apply to a person who is appointed to or holds the office of Comptroller and Auditor General after the commencement of this Act.

12 & 13 Geo. 6.
c. 44.

(3) Where by virtue of subsection (2) of this section the Superannuation Acts, 1834 to 1949, cease to apply to any person, any contributions previously paid by him under those Acts may be returned to him, with compound interest at such rate as may be for the time being in force under sections eight and twenty-one of the Superannuation Act, 1949; and the sums required for that purpose shall be defrayed out of moneys provided by Parliament in accordance with section sixty-two of that Act.

Citation
and repeals.

4.—(1) This Act may be cited as the Exchequer and Audit Departments Act, 1950, and this Act and the Exchequer and Audit Departments Acts, 1866 and 1921, may be cited together as the Exchequer and Audit Departments Acts, 1866 to 1950.

29 & 30
Vict. c. 39.
9 & 10 Geo. 6.
c. 40.

(2) Section four of the Exchequer and Audit Departments Act, 1866, and section five of the Miscellaneous Financial Provisions Act, 1946, are hereby repealed.

CHAPTER 4

An Act to increase the amounts payable out of moneys provided by Parliament for the purposes of schemes under section one of the Colonial Development and Welfare Act, 1940, and to repeal so much of subsection (5) of that section as limits its application to colonies not possessing responsible government.

[15th December 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of 3 & 4 Geo. 6.
c. 40. s. 1 (1).

1. As from the first day of April, nineteen hundred and fifty-one, subsection (1) of section one of the Colonial Development and Welfare Act, 1940, as amended by the Colonial Development and Welfare Act, 1945, and the Colonial Development and Welfare Act, 1949, shall have effect as if, in paragraph (a) of the proviso thereto (which paragraph imposes on the sums to be paid out of moneys provided by Parliament for the purposes of schemes made under that section a limit of twenty million pounds in any financial year and of one hundred and twenty million pounds for the period of ten years ending with the thirty-first